

Perot, Emma. Commercialising Celebrity Persona: Intellectual Property Law and Practice. Oxford: Hart Publishing, 2023. Bloomsbury Collections. Web. 27 Apr. 2026. <<http://dx.doi.org/10.5040/9781509966127>>.

Accessed from: www.bloomsburycollections.com

Accessed on: Mon Apr 27 2026 16:34:52 British Summer Time

Copyright © Emma Perot. All rights reserved. Further reproduction or distribution is prohibited without prior permission in writing from the publishers.

2

Legal Regulation of Persona in the UK, New York and California

Introduction

This chapter examines the legal regulation of persona in the UK, New York and California. The UK has limited protection afforded by various causes of action, with passing off and the Advertising Codes being the most useful. New York has historically provided publicity protection under the guise of the *inter vivos* right to privacy. In 2020, after years of lobbying, New York extended this commercial protection post-mortem under the right of publicity terminology, which better reflects the commercial interests of the individual and, now, their estate.¹ California has the most expansive laws that cover both *inter vivos* and post-mortem rights of publicity via statute, which names elements of persona. In addition, the common law protects ‘identity’, but only for living individuals. Both States are subject to the false endorsement action under the federal Lanham Act, which also extends to ‘identity’. While a false endorsement claim requires confusion, the threshold is lower than the UK’s formulation of false endorsement under the passing-off action.

The legal framework for protecting persona in each jurisdiction provides the background against which the empirical findings will be discussed in subsequent chapters. The legal regulation examined in this chapter would suggest that there is more leeway for unauthorised use of persona in the UK due to the piecemeal approach and, in particular, the higher threshold for a passing-off claim. It follows that New York and California, with more expansive protection, would have entrenched the need to seek authorisation to use persona to avoid a potential claim. Particularly as the false endorsement action under the Lanham Act can be used alongside the right of privacy/publicity actions, giving litigants a selection of causes of action.

Subsequent chapters reveal that the doctrinal position does not always align with the law in action. In the UK, passing off, which is assessed in this chapter as having limited application, has a greater impact on decision making than anticipated, particularly in the advertising and merchandising industries. The litigation

¹ New York Civil Code, s 50(f).

risk that influences permission to be sought to use persona was arguably overstated by interviewees in chapters 5–8, as the limitations of passing off observed in this chapter are manifested in the lack of use in dispute resolution, which will be discussed in chapter 4. The two perceptions of passing off observed in fieldwork are irreconcilable. Passing off poses a perceived risk that prompts permission to be sought to use persona in certain circumstances, despite being rarely invoked when persona is used without permission.

As for the UK Advertising Codes, while these should be useful for regulating persona in the advertising industry, they are rarely relied upon. Lawyers interviewed did not consider the Codes to be influential in decision making because disputes are not adjudicated in court, and limited remedies are administered by the Advertising Standards Agency (ASA). The limitations of the Codes are recognised in this chapter, so in this instance, theory and reality align.

In the US, the causes of action examined in this chapter influence permission-based behaviours observed in the advertising, merchandising and video game industries. However, these behaviours often developed before the law, and are often supported by other influences, namely, the benefits of collaboration and social norms. In fact, advancements in technology in the advertising and video game industries have made it particularly worthwhile to collaborate with celebrities to create the best product possible. This indicates that even if the law was not present, some behaviours would continue to exist. In contrast, the level of influence of law in the film industry is disproportionate since publicity rights do not protect one's 'life story', yet a behaviour of seeking permission where it is likely to be given has developed because of the poor handling of these types of cases in courts. This is despite the fact that no claim for infringement of the right of publicity against a film producer has been successful, as will be examined in this chapter.

The law analysed in this chapter often influences behaviours of seeking permission discussed in chapters 5–8. Yet these permission-based behaviours are usually governed by contracts that use the law to guard against liability, rather than to grant positive legal rights, as explained in chapter 4. However, when there is no relationship between parties, and persona is used without permission, the available causes of action will be employed in dispute resolution. The higher threshold for a passing-off claim in the UK equates to limited redress for unauthorised use of persona, whereas publicity and false endorsement actions in the US facilitate claims in many circumstances.

This chapter is divided into three sections. Section I examines the piecemeal approach to persona protection in the UK. Emphasis is placed on passing off and the Advertising Codes as these are the most useful causes of action. Trade mark law is somewhat useful as it confers a proprietary right, but it is limited in what aspects of persona can be registered for protection. Other causes of action – copyright, breach of confidence and defamation – are briefly outlined to explain why they are unsuitable for protecting persona. Section II examines persona protection in the US. The federal false endorsement action is examined first. It will be argued that this action is more plaintiff-friendly than passing off

because there is no goodwill requirement, and the threshold for confusion is lower than misrepresentation. Following this, the New York right of privacy is examined. Despite its name, the New York right of privacy performs the function of a publicity right.² The introduction of a post-mortem right of publicity is also discussed. Subsequently, the California common law and statutory publicity rights are examined. Section III considers the hypothetical impact that all the causes of action discussed in this chapter *should* have on the industries examined in this book against the *actual* impact observed in fieldwork that will be discussed in subsequent chapters.

I. United Kingdom

There is no protection against misappropriation of persona in the UK under common law or statute. Instead, those wishing to protect and/or exploit persona must rely on piecemeal protection. The protection that will be discussed in this section includes:

- passing off
- the Advertising Codes
- trade mark law
- copyright
- breach of confidence
- defamation.

Misuse of private information is not considered, as the focus of this book is the control of persona in the commercial sphere rather than privacy rights;³ privacy concerns the ability to control personal information and protect against intrusions

² Adkins, BA, 'Crying out for Uniformity: Eliminating State Inconsistencies in Right of Publicity Protection through a Uniform Right of Publicity Act' (2009) 40 *Cumb L Rev* 499, 505: '[T]he current New York statute derives its cause of action for the right of publicity from the right of privacy, as indicated by the "Right of Privacy" title assigned to the statute.'

³ The approach to misuse of private information in the UK is not examined in this chapter as it is considered an unsuitable avenue from which to protect persona in the commercial sphere. For more information on the misuse of private information, see: Aplin, T, 'Commercialising Privacy and Privatising the Commercial: The Difficulties Arising from the Protection of Privacy via Breach of Confidence' in Kur, A et al (eds), *Intellectual Property, Unfair Competition and Publicity – Convergence and Development* (Edward Elgar 2014) 189; Aplin, T, 'The Future of Breach of Confidence and the Protection of Privacy' (2007) 7 *Oxford U Commw LJ* 137; Morgan, J, 'Privacy, Confidence and Horizontal Effect: Hello 'Trouble' (2003) 62 *Cambridge LJ* 444. For UK cases, see: *HRH The Duchess of Sussex v Associated Newspapers Ltd* [2021] EWHC 273 (Ch); *Weller v Associated Newspapers Ltd* [2015] EWCA Civ 1176; *Murray v Express Newspapers plc and another* [2008] EWCA 446; *McKennitt v Ash* [2006] EWCA Civ 1714; *A v B & C* [2002] EWCA Civ 337. For cases at the ECtHR, see: *von Hannover v Germany (No 2)* (2012) 55 EHRR 15; *Reklos v Greece* [2009] EMLR 16; *von Hannover v Germany* (2004) 40 EHRR 1.

into the personal sphere; publicity concerns the ability of an individual to regulate commercial exploitation of persona. The UK does not recognise a tort of privacy.⁴ Since the introduction of the Human Rights Act 1998, the courts must give effect to the European Convention on Human Rights (ECHR), including Article 8, the right to respect for private life, which is usually weighed against Article 10, freedom of expression.⁵ In order to give effect to Article 8, UK courts transformed breach of confidence to include misuse of private information.⁶ Misuse of private information is unlikely to be of assistance in protecting persona on a commercial basis in the UK. While news reporting and magazines are 'commercial', in the sense that they are created to generate profit, they are not the type of uses that would be prevented by persona protection. As such, more relevant causes of action that regulate persona in the commercial sphere are focused on in this section.

In this section, it will be argued that passing off and advertising codes offer some persona protection, but there are limitations in the UK legal framework. For passing off, the main difficulty is the misrepresentation requirement, which does not protect persona *per se* but rather the goodwill of a trader. The Advertising Codes regulate the use of persona, but they do not provide compensation to an aggrieved individual. Further, they do not apply to packaging, labelling or products, and the non-broadcast code urges rather than requires permission for use of 'living persons'.⁷ The other causes of action are more limited. Trade mark law can protect against confusing uses of name and signature, and potentially instances of misappropriation where the mark has a reputation,⁸ but only these two aspects of persona are likely to be protected due to registration requirements. The exceptional case of *Douglas v Hello!*, under breach of confidence, has potential for persona protection, but its unique facts and unorthodox approach to breach of confidence potentially limit further application.⁹ Copyright can only provide protection if the persona is also the copyright holder, and defamation requires the persona's reputation to be damaged in order to bring a claim. Based on the available causes of action, the assessment that will be made is that the avenues for protection do not allow an individual full commercial control over her persona, in contrast to the US approach that confers proprietary rights.

A. Passing Off

The classic trinity, as stated in the *Jif lemon* case,¹⁰ of goodwill, misrepresentation and damage has been expanded to accommodate different types of harm,

⁴ *Wainwright v Home Office* [2003] UKHL 53.

⁵ *Campbell v Mirror Group Newspapers Ltd* [2004] UKHL 22.

⁶ *ibid.*

⁷ Stallard, H, 'Right of Publicity in the United Kingdom' (1997) 18 *Loy LA Ent LJ* 565, 573–74.

⁸ Davies, G, 'Celebrity and Trade Marks: The Next Instalment' (2004) 1 *SCRIPTed* 230.

⁹ *Douglas & ors v Hello! Ltd & ors (No 3)* [2007] UKHL 21.

¹⁰ *Reckitt & Colman Ltd v Borden Inc* [1990] 1 All ER 873.

including dilution,¹¹ reverse passing off¹² and, most relevantly for persona protection, false endorsement. However, despite the much-publicised successes of Eddie Irvine in his claim against TalkSport radio for using his photograph on a brochure,¹³ and Rihanna against Topshop for using her photograph on a t-shirt,¹⁴ passing off provides limited protection for persona.

Passing off protects against misrepresentation rather than misappropriation. The consumer must be deceived to the effect that the claimant's goodwill is damaged.¹⁵ The misrepresentation requirement poses the most significant hurdle to a passing-off claim. Goodwill can also be difficult to establish since more than mere reputation is required, but it is unlikely to prove a significant hurdle due to advances in the law. Damage may prove problematic in instances where a licence would not have been granted, but damage is usually presumed once there has been a misrepresentation.¹⁶ The issues that arise under each element of passing off will now be discussed. Following this, an overall analysis will be undertaken of the usefulness of passing off in persona protection.

i. Goodwill

Goodwill is the attractive force that brings in custom.¹⁷ It is more than mere reputation.¹⁸ In order to protect persona under passing off, an individual must possess goodwill. To establish goodwill, a claimant must have trading activity in the UK.¹⁹ While a claimant who has goodwill in the UK is likely to have a reputation, the inverse does not apply, as a claimant who has reputation does

¹¹ *Bollinger v Costa Brava Wine Co Ltd* [1961] RPC 116.

¹² *Bristol Conservatories Ltd v Conservatories Custom Built Ltd* [1989] RPC 455.

¹³ 'Eddie Irvine wins £25,000 damages in TalkSPORT appeal' *Campaign* (1 April 2003) at www.campaignlive.co.uk/article/eddie-irvine-wins-25000-damages-talksport-appeal/175837?src_site=brandrepublic (accessed 23 July 2017); Cozens, C, 'MacKenzie's TalkSport loses £275,000 to Irvine' *The Guardian* (2 April 2003) at www.theguardian.com/media/2003/apr/02/radio.business (accessed 17 October 2016); Davies, A, 'Formula one ace wins high court battle over "doctored" ad' *The Guardian* (13 March 2002) at www.theguardian.com/media/2002/mar/13/advertising.formulaone (accessed 10 October 2017).

¹⁴ 'Rihanna wins legal battle with Topshop over T-shirt' *The Telegraph* (22 January 2015) at www.telegraph.co.uk/news/celebritynews/11362116/Rihanna-wins-legal-battle-with-Topshop-over-T-shirt.html (accessed 1 February 2017); Bowcott, O, 'Rihanna wins Topshop T-shirt row' *The Guardian* (22 January 2015) at www.theguardian.com/music/2015/jan/22/rihanna-topshop-tshirt-court (accessed 15 November 2017); 'Pop star Rihanna wins image battle' *BBC* (22 January 2015) at www.bbc.co.uk/news/entertainment-arts-30932158 (accessed 13 May 2016).

¹⁵ Davis, J, 'Why the United Kingdom should have a law against misappropriation' (2010) 69 *Cambridge LJ* 561, 563: 'In fact, what is generally held necessary in passing off is not any misrepresentation, but a misrepresentation which damages the claimant's goodwill.'

¹⁶ Davis (2010) 563–64.

¹⁷ *Commissioners of Inland Revenue v Muller & Co Margarine* [1901] AC 217.

¹⁸ Mellor, J et al, *Kerly's Law of Trade Marks and Trade Names* (16th edn, Sweet & Maxwell 2017) § 20-024.

¹⁹ *Hotel Cipriani v Cipriani (Grosvenor Street)* [2010] EWCA Civ 10; *Anheuser-Busch v Budejovicky Budvar* [1984] FRS 413.

not automatically have goodwill.²⁰ The requirement of goodwill rather than reputation was made clear by the Supreme Court in *Starbucks v British Sky Broadcasting*:

I consider that we should reaffirm that the law is that a claimant in a passing off claim must establish that it has actual goodwill in this jurisdiction, and that such goodwill involves the presence of clients or customers in the jurisdiction for the products or services in question.²¹

The evidential burden of proving goodwill is a potential stumbling block, but one that should not prove fatal to a claim. This is because the law has developed in response to merchandising and sponsorship activities. In the past, claims that purported to protect persona were thwarted by the ‘common field of activity’, which required claimants to be in the same business as the defendant.²² However, this is no longer a requirement.²³ Even if it were, it is unlikely that it would have a substantial impact since claimants generally are involved in merchandising and sponsorship, as evidenced by the *Irvine*²⁴ and *Fenty*²⁵ cases, and as recognised in *Stringfellow*²⁶ and *Mirage Studios v Counterfeit Clothing*.²⁷

In both *Irvine* and *Fenty*, the claimants were at the top of their fields. Birss J discussed Rihanna’s numerous merchandising and sponsorship deals and concluded that ‘The scope of her goodwill was not only as a music artist but also in the world of fashion, as a style leader.’²⁸ This finding reflects that goodwill must be in the industry in which the claim is based. For celebrities, this will likely be the merchandising and sponsorship industries. There is no guidance on how much trading activity must be carried out before an individual is found to have goodwill. It is likely that ‘A-list’ celebrities and athletes such as Beyoncé and David Beckham, who have carefully crafted their personal brands over the years, will possess the requisite goodwill. It is less certain whether emerging celebrities and athletes will be able to prove goodwill.

Celebrities who have fans in the UK but do not have many merchandising or sponsorship deals in the jurisdiction may have difficulty proving goodwill. *Stringfellow* indicates that the potential merchandising and endorsement value of

²⁰ Kerly (2017) § 20-05.

²¹ *Starbucks v British Sky Broadcasting Group Plc* [2015] UKSC 31 [47].

²² *Harrison and Starkey v Polydor* [1977] FSR 1; *Wombles v Womble Skips* [1975] FSR 488, [1977] RPC 99; *McCulloch v Lewis A May* [1947] 2 All ER 845.

²³ *Lego Systems A/S v Lego M Lemelstrich* [1983] FSR 155; Bains, S, ‘Personality rights: should the UK grant celebrities a proprietary right in their personality? Part 1’ (2007) 18(5) *Ent L Rev* 164, 166; Tan, D, ‘Fame Monster Reloaded: The Contemporary Celebrity, Cultural Studies and Passing Off’ (2010) 32 *Sydney L Rev* 291, 293; Phillips, J, Coleman, A, ‘Passing off and the common field of activity’ (1985) 101 *LQR* 242.

²⁴ *Irvine and another v Talksport Ltd* [2002] EWHC 367 (Ch).

²⁵ *Fenty and others v Arcadia Group Brands Ltd (trading as Topshop) and another* [2015] EWCA Civ 3.

²⁶ *Stringfellow v McCain Foods Ltd* [1984] RPC 501 [517].

²⁷ *Mirage Studios v Counter-Feat Clothing Company Limited* [1991] FSR 145.

²⁸ *Fenty* [2013] [46].

the name might be enough,²⁹ but the claimant must have customers in the UK to establish goodwill.³⁰ The status of the law on preparations to trade is not clear, but *obiter dicta* indicate that the law may be open to such expansion.³¹ As such, the use of technology to distribute entertainment media such as albums via streaming services and music videos on YouTube can result in entertainers', for example singers, gaining a reputation in the UK as they prepare to begin trading activities. It is uncertain whether the same can be said for actors and athletes. For actors, the sale of film tickets might be treated as the trading activity of cinemas and the film producer. Similarly, athletes compete in competitions organised by different entities, or are employed by a team. Since goodwill requires trading activity in the UK, famous individuals in the aforementioned fields are likely to be required to show evidence of merchandising and endorsement in the UK, such as brand collaborations and/or the sale of products bearing an aspect of persona.

ii. Misrepresentation

In the UK, passing off protects against deceptive uses of goodwill, rather than against misappropriation. The assessment of misrepresentation depends on whether consumers believe there is a connection between the claimant and the defendant. According to Lord Justice Jacob in *Reed Executive v Reed Business Information*:

Once the position strays into misleading a substantial number of people (going from "I wonder if there is a connection" to "I assume there is a connection") there will be passing off, whether the use is as a business name or a trade mark on goods.³²

²⁹ *Stringfellow v McCain* [1984] [517]: 'He [referring to an expert witness] assumed that this use by the first defendants in this name was the result of the grant of merchandising rights to the first defendants and it was his view that a use of this character would be damaging to the image, which I think can fairly be equated with the goodwill attaching to the name.'

³⁰ Kerly (2017) § 20-025.

³¹ *Starbucks v British Sky Broadcasting Group Plc* [2015] UKSC 31 [66]: 'Finally, a point which I would leave open is that discussed in the judgment of Sundaresh Menon CJ in *Staywell* ... namely whether a passing off claim can be brought by a claimant who has not yet attracted goodwill in the UK, but has launched a substantial advertising campaign within the UK making it clear that it will imminently be marketing its goods or services in the UK under the mark in question. It may be that such a conclusion would not so much be an exception, as an extension, to the "hard line", in that public advertising with an actual and publicised imminent intention to market, coupled with a reputation thereby established may be sufficient to generate a protectable goodwill. On any view, the conclusion would involve overruling *Maxwell v Hogg*, and, if it would be an exception rather than an extension to the "hard line", it would have to be justified by commercial fairness rather than principle. However, it is unnecessary to rule on the point which ... has some limited support in this jurisdiction and clear support in Singapore. Modern developments might seem to argue against such an exception ... but it may be said that it would be cheap and easy, particularly for a large competitor, to "spike" a pre-marketing advertising campaign in the age of the internet. It would, I think, be better to decide the point in a case where it arises.'

³² *Reed Executive v Reed Business Information* [2004] RPC 767 [797] (emphasis added).

The misrepresentation must amount to more than mere confusion. While many cases use the terms ‘confusion’ and ‘deception’ interchangeably, ‘mere confusion does not indicate or establish passing off’.³³ For a successful claim to protect persona, there must be an implied endorsement that constitutes a material misrepresentation as to the connection between the claimant and the defendant.³⁴ ‘Material’ means that the claimant’s goodwill is damaged.³⁵ There will be many instances where the issue of misrepresentation is unclear, which might deter the individual featured from bringing a claim, but the user still derives the benefit of the persona. This is reflective of reality, and the perceived difficulties of bringing a successful claim are discussed in chapter 4. An example of a situation that might not be pursued due to the requirements of passing off is where a travel agency sells cricket tours using a photograph of a cricketer. Consumers might be confused as to whether there is a connection, but not necessarily be deceived into thinking there is one. The use of persona in the advertisement would illustrate the purpose of the tour, but it might not amount to an endorsement.³⁶ Such a use would stay within the realm of ‘I wonder’ as opposed to ‘I assume’ articulated by Lord Justice Jacob above.

In the two famously successful UK passing-off cases, *Irvine*³⁷ and *Fenty*,³⁸ the use of persona was an image that looked ‘official’. The image of Rihanna was from her album artwork and Irvine’s photograph was edited to look like he was holding a TalkSport radio. For uses that look less ‘official’, it is less likely that a claim will be made out in passing off. According to Birss J, ‘the less flattering the image the less likely it is that it would thought to be authorised’.³⁹ It is unlikely that the average consumer would think an individual would authorise a use of persona that casts her in a negative light. For example, the public might not think there was authorisation if an advertisement for alcohol uses the persona of a teetotaler. Similarly, a humorous use would probably not constitute a misrepresentation. Since passing off is meant to protect the consumer, this approach is sensible, but a law that is designed to protect persona would prohibit such uses even in the absence of misrepresentation. The misrepresentation element of passing off can be an insuperable evidential barrier to a successful claim.

iii. Damage

Damage in passing off is assessed as a lost licence fee and/or diversion from the claimant’s own business activities. According to Birss J, ‘[i]f ... a substantial

³³ Kerly (2017) § 20-97.

³⁴ *ibid* (2017) § 20-26.

³⁵ Wadlow, C, *The Law of Passing-Off: Unfair Competition by Misrepresentation* (Sweet & Maxwell 2016) § 18-027.

³⁶ It should be noted, however, that the line between illustrating and endorsement advertisements is blurred. See ch 5, section I for discussion of the different types of advertisements.

³⁷ *Irvine* [2002].

³⁸ *Fenty* [2013].

³⁹ *ibid* [66].

number of purchasers are likely to be deceived ... that will obviously be damaging to the claimant's goodwill'.⁴⁰ Once misrepresentation is made out, damage is usually uncontentionous. According to Davis, 'in practice, a claimant is rarely, if ever, put to the task of proving it [damage] has occurred'.⁴¹ It remains to be seen whether dilution or tarnishment could be assessed as damage where persona is used without authorisation in a non-flattering way. If these heads of damage were extended to individual claimants, they could be compensated for degrading uses, however, such uses make misrepresentation more difficult to prove.

iv. Assessment of Passing Off

Passing off is a useful tool in protecting persona, but there are limits to the efficacy of this deception-based harm given its consumer focus. The state of the law is adequately reflected in Birss J's statement, 'The mere sale by a trader of a t-shirt bearing an image of a famous person is not, without more, an act of passing off'.⁴² As such, misrepresentation will be the turning point in many passing-off cases.⁴³ Goodwill, while a potential challenge for less established celebrities and athletes, is not insurmountable if trading activity can be shown in the UK. The absence of merchandising and endorsement deals might prove problematic, but other trading activity in the UK, with the potential to venture into merchandising and endorsement, could suffice, according to *Stringfellow*.⁴⁴ Once goodwill and misrepresentation are made out, damage will usually be found.⁴⁵ While this is the strongest cause of action for persona protection in the UK, it must be emphasised that it does not confer a proprietary right, and it is designed to protect consumers. While it has evolved to protect individuals, the strength of the evidence in *Irvine*⁴⁶ and *Fenty*⁴⁷ as to misrepresentation should not be understated.

B. Advertising Codes

i. The Codes

There are two Advertising Codes that are enforced by the Advertising Standards Authority (ASA). The UK Code of Broadcast Advertising (BCAP) provides

⁴⁰ *Fenty* [2013] [74].

⁴¹ Davis, J, 'Why the United Kingdom should have a law against misappropriation' (2010) 69 *Cambridge LJ* 561, 563–64.

⁴² *Fenty* [2013] [75].

⁴³ Barajas, ADL, 'Personality rights in the United States and the United Kingdom – is Vanna too much? Is Irvine not enough?' (2009) 20 *Ent L Rev* 253, 257.

⁴⁴ *Stringfellow* [1984].

⁴⁵ Fletcher, S et al, 'Court of Appeal found no love for Topshop tank: the image right that dare not speak its name' (2015) 37 *EIPR* 394, 398.

⁴⁶ *Irvine* [2002].

⁴⁷ *Fenty* [2013].

guidelines for advertisers using radio and television advertisements. The BCAP defines 'advertisement' as

publicity by advertisers, including spot advertisements and broadcaster promotions with advertisers (outside programme time), that is broadcast in return for payment or other valuable consideration to a broadcaster or that seeks to sell products to viewers or listeners.⁴⁸

'Broadcasters', defined as 'Ofcom-licensed television and radio services provided by broadcasters within UK jurisdiction',⁴⁹ are responsible for ensuring that all advertisements comply with the BCAP.⁵⁰ The 'Principle' section of the BCAP states that 'The ASA may decline to investigate where there is a dispute which, in its view, would be better resolved ... through the Courts'.⁵¹

The Code of Non-Broadcast Advertising and Direct and Promotional Marketing (CAP) provides guidance for non-broadcast advertisements, sales promotions and direct marketing communications. The preface to the CAP states that '[t]he Code supplements the law, fills gaps where the law does not reach and often provides an easier way of resolving disputes than by civil litigation'.⁵² The CAP suggests that, '[i]n many cases, self-regulation ensures that legislation is not necessary'.⁵³ While both Codes are based on a compliance approach,⁵⁴ the CAP is more forceful in emphasising the value of self-regulation. The ASA intervenes where a complaint has been made, but it is up to the marketers to ensure that their advertisements comply. Nonetheless, the Background to the Code states that '[a]ny matter that principally concerns a legal dispute will normally need to be resolved through law enforcement agencies or the Courts'.⁵⁵

The CAP defines 'marketer' as 'an advertiser, promoter or direct marketer'.⁵⁶ More usefully, it provides a list of communications that are regulated by the Code,⁵⁷ such as advertisements in newspapers, magazines and other print media,

⁴⁸ BCAP, Introduction, b(ii).

⁴⁹ BCAP, Introduction, b(i). Ofcom is the UK's communications regulator.

⁵⁰ 'Broadcasters are responsible for ensuring that the advertisements they transmit comply with both the spirit and the letter of the Code.' BCAP, Section 1, Compliance, Principle.

⁵¹ *ibid.*

⁵² CAP, Preface.

⁵³ *ibid.*

⁵⁴ BCAP, Section 1, Compliance; CAP, Section 1, Compliance.

⁵⁵ CAP, Section 1, Compliance.

⁵⁶ CAP, Scope, III(g).

⁵⁷ Under CAP, Scope, I, the communications regulated by the CAP are: (a) advertisements in newspapers, magazines, brochures, leaflets, circulars, mailings, e-mails, text transmissions (including SMS and MMS), fax transmissions, catalogues, follow-up literature and other electronic or printed material; (b) posters and other promotional media in public places, including moving images; (c) cinema, video, DVD and Blu-ray advertisements; (d) advertisements in non-broadcast electronic media, including but not limited to: online advertisements in paid-for space (including banner or pop-up advertisements and online video advertisements); paid-for search listings; preferential listings on price comparison sites; viral advertisements; in-game advertisements; commercial classified advertisements; advergames that feature in display advertisements; advertisements transmitted by Bluetooth; advertisements distributed through web widgets and online promotions and prize promotions; (e) marketing databases containing consumers' personal information; (f) promotions in non-broadcast media; (g) advertorials; and (h) advertisements and other marketing communications by or from

and online advertisements and websites that contain ‘paid-for marketing communications from or by marketers targeting people in the UK’.⁵⁸ It also provides a list of those that are not regulated by the Code. Most notably, the CAP does not apply to ‘packages, wrappers and labels’.⁵⁹

Despite the voluntary nature of the CAP, ‘[t]he vast majority of advertisers, promoters and direct marketers comply with the Code’ according to the ASA.⁶⁰ Failure to adhere to the Code can result in sanctions. These sanctions include adverse publicity through the publication of a ruling against a marketer, which may in turn result in the withholding of services by contractors. Furthermore, the ASA can require advertisements to be vetted before circulation, and the marketer can be referred to Trading Standards for further action. Broadcasters face more serious sanctions, as consistent failure to comply with the BCAP can result in fines and/or a withdrawal of their licence.⁶¹ An advertisement that is the subject of complaints may be removed from circulation at the ASA’s discretion. While these sanctions apply to the advertiser or the broadcaster, no compensation is granted to the individual who made the complaint.

The basis for an individual complaint for unauthorised use of persona can be found in section 3 (‘Misleading advertising’) and section 6 (‘Privacy’) of each Code. The key provisions have been classified according to the following themes for ease of reference:

- Use of living persons and caricatures.
- False endorsement.
- Offensive use.

While BCAP uses definitive language, CAP often uses suggestive language as it ‘urges’ permission to be sought to use persona.

ii. Use of Living Persons and Caricatures

a. BCAP

Under rule 6.1 BCAP:

Television only – With limited exceptions, living persons *must not* be featured, caricatured or referred to in advertisements without their permission.⁶²

companies, organisations or sole traders on their own websites, or in other non-paid-for space online under their control, that are directly connected with the supply or transfer of goods, services, opportunities and gifts, or which consist of direct solicitations of donations as part of their own fund-raising activities.

⁵⁸ CAP, Scope, II(c).

⁵⁹ CAP, Scope, II(m).

⁶⁰ CAP, Preface.

⁶¹ ASA, ‘Codes and Rulings – Sanctions’ at www.asa.org.uk/codes-and-rulings/sanctions.html (accessed 7 March 2017).

⁶² Rule 6.1 BCAP (emphasis added). Exceptions include brief and incidental appearances, such as crowd scenes, and advertisements that refer to a person featured in publications, programmes,

This stringent approach means that the BCAP goes further than passing off as there is no confusion requirement; rather, the approach prohibits misappropriation.

The rule for radio advertisements is not as stringent as the preceding one. Rule 6.2 instructs that if permission has not been obtained, ‘a person featured in an advertisement must not be featured in an offensive, adverse or defamatory way’.⁶³ As to sound-alikes and impersonation, these are allowed if they are ‘instantly recognisable and if it could be reasonably expected that the person concerned has no reason to object’.⁶⁴ The Code advises seeking legal advice when producing such advertisements.

b. CAP

Rule 6.1 CAP is not as stringent as the BCAP equivalent. It is similar to rule 6.2 BCAP in that it instructs:

Marketers must not unfairly portray or refer to anyone in an adverse or offensive way unless the person has given the marketer written permission to allow it.⁶⁵

However, it does not go as far as the prohibition in rule 6.1 BCAP. Rather, it ‘urges’ marketers to seek permission if

- (a) referring to or portraying a member of the public or his or her identifiable possessions;
- (b) referring to a person with a public profile.

Unlike the BCAP, the CAP does not prohibit the use of living persons, and advertisements that have been the subject of objections have not been judged consistently. This undermines the CAP’s ability to protect persona, but it provides leeway to advertisers to use persona without ramifications in some instances. In a complaint that was upheld by the ASA, a security guard lodged a complaint about the use of his photograph to advertise security services.⁶⁶ His ex-employer, J&S Security, used his photograph in a leaflet to promote their services. The ex-employer argued that they had obtained oral consent, but this was denied by the guard. The ASA held that the ex-employer had failed to obtain written consent, so the leaflet breached the Code. In contrast, Major Charles Ingram, made notorious by attempting to cheat on the gameshow *Who Wants to be a Millionaire?*, and his wife Diana complained to the ASA (formerly Ofcom) after easyJet used their photographs in an advertisement with the caption, ‘No Major fraud required! Lowest fares to the sun ...’ Their claim was unsuccessful, as the ASA stated that the Advertising Code recommends obtaining permission when

films and the like, provided that the reference to or portrayal of that person is neither offensive nor defamatory.

⁶³ Rule 6.2 BCAP (‘Privacy’).

⁶⁴ *ibid.*

⁶⁵ Rule 6.1 CAP (‘Privacy’).

⁶⁶ *J&S Security* (ASA ruling, 30 September 2009).

portraying individuals but does not require it.⁶⁷ Furthermore, the image used was in the public domain and the advertisement ‘portrayed the Ingrams in a way that was consistent with the verdicts in their recent court case.’⁶⁸

Not all eventualities are addressed by the CAP. Some issues are tackled by the ASA via articles that are accessible under ‘Advice and Resources’. In an article entitled ‘Privacy: Use of Impersonators and Caricatures’, the ASA advised that ‘Cheeky or obviously humorous uses of lookalikes that are unlikely to confuse readers about endorsement and are not derogatory to the original celebrity are likely to be acceptable.’⁶⁹ In the complaint of *Bedford v The Number*,⁷⁰ David Bedford lodged a complaint about a telephone directory producer for using a look-alike of him in an advertisement. The ASA did not ban the advertisement, but rather ordered a publication of the breach of the CAP and the fact that Bedford had not endorsed *The Number*. In another look-alike complaint, Eric Cantona successfully contested an advertisement in 1996 by Molson Beers that featured a look-alike of Cantona to recreate an incident where Cantona, wearing a Manchester United jersey with the collar turned up and his number on it, kicked a fan.⁷¹ In the Cantona complaint, the ASA noted that ‘Although the reference did not imply an endorsement of the product, the advertiser had not sought permission from Cantona to portray him in this way.’⁷²

The objection to the use of look-alikes in the aforementioned complaints was successful, yet the use of the Ingrams’ actual photographs was allowed. The inconsistency in judgments can be attributed to the suggestive language used in the CAP. While this can be beneficial to advertisers willing to test the limits of the Codes, it makes it difficult for individuals to know whether they can use the Codes to protect persona. The absence of legal damages in light of this uncertainty may deter individuals from relying on the Codes.

iii. False Endorsement

a. BCAP

The ‘Principle’ of section 6 BCAP (‘Privacy’) states that ‘[a]dvertisements featuring an individual should not imply that that individual endorses a product if he or she does not’. False endorsement is also dealt with under rule 3.47, which states:

Advertisements must not claim that the advertiser (or any other entity referred to in the advertisement), the advertisement or the advertised product or service has been approved, endorsed or authorised by any person or body if it has not or without complying with the terms of the approval, endorsement or authorisation.

⁶⁷ Boyd, S, ‘Image wrongs: Causes of action for misappropriation – Part 2’ (2006) 14 *SATLJ* 4.

⁶⁸ *ibid* 4.

⁶⁹ ASA, ‘Privacy: Use of impersonators and caricatures, Advice Online’ (8 April 2014) at www.asa.org.uk/advice-online/privacy-use-of-impersonators-and-caricatures.html (accessed 31 October 2022).

⁷⁰ *Bedford v The Number (UK) Ltd* [2004] ILSR SLR-18.

⁷¹ *Molson Scottish Courage Ltd* (ASA ruling, 16 December 1996).

⁷² ASA (2014); *Molson* (1996).

Testimonials must not be featured without permission according to rule 3.46 BCAP. Furthermore, under rule 3.1 BCAP, ‘advertisements must not materially mislead or be likely to do so.’⁷³ A similar provision is featured in the CAP, and the significance of this is explained in section I.B.iii.b.

b. CAP

Rule 6.1 CAP advises that written permission should be obtained before ‘implying any personal approval of the advertised product’, and advises that ‘marketers should recognise that those who do not want to be associated with the product could have a legal claim.’⁷⁴ This alludes to passing off. However, there is a caveat, which states that ‘Prior permission might not be needed if the marketing communication contains nothing that is inconsistent with the position or views of the featured person.’⁷⁵

With regard to testimonials, rule 3.45 CAP states:

Marketers must hold documentary evidence that a testimonial or endorsement used in a marketing communication is genuine, unless it is obviously fictitious, and hold contact details for the person who ... gives it.⁷⁶

Permission is generally required for testimonials, unless the testimonial consists of

accurate statements taken from a public source, quotations from a publication or references to a test, trial or professional endorsement, research facility or professional journal, which may be acceptable without express permission.⁷⁷

While not directed at use of persona, rule 3.1 states that advertisements must not be misleading. The significance of this rule can be seen in the complaint against Go Groopie Ltd, which featured an advertisement for a skin serum.⁷⁸ The advertisement on the website *gogroopie.com* claimed ‘[t]reatment already a favourite with celebrities such as Helen Mirren and Jennifer Lopez’. This claim was found to be a violation of rule 3.1 as it was misleading. The ASA ruled that Go Groopie must not display the ad with the misleading claims unless they could be substantiated. The force of this rule shows that there does not necessarily need to be an endorsement; rather, referring to the preference of an individual may be considered misleading if there is no evidence to support the claim.

It is worth noting that an advertisement that purports to contain an endorsement may not be prevented if it is obvious that the person has not endorsed the

⁷³ Rule 3.1 BCAP (‘Misleading Advertising’).

⁷⁴ Rule 6.1 CAP (‘Privacy’).

⁷⁵ *ibid.*

⁷⁶ Rule 3.45 CAP (‘Misleading Advertising’).

⁷⁷ Rule 3.48 CAP (‘Misleading Advertising’).

⁷⁸ *Go Groopie Ltd* (ASA ruling, 21 August 2013).

product: the CAP has given the examples of Prince Charles (now King) to promote safety eyewear and Cherie Blair to promote beer.⁷⁹

iv. Offensive Use

a. BCAP

Rule 6.2 BCAP states:

Broadcasters must ensure that, if an advertiser has not sought his or her prior permission, a person featured in an advertisement must not be featured in an offensive, adverse or defamatory way.

b. CAP

Advertisers must not feature people in an offensive or adverse way unless permission has been granted, according to rule 6.1 CAP.

v. Assessment of the Codes

The BCAP makes it clear that use of persona without permission is generally prohibited, whereas the CAP is aimed at preventing false endorsement and advertisements that portray individuals in an offensive manner, rather than protecting persona per se. This is evidenced by the absence of definitive language regulating living persons, and inconsistent rulings. Permission is 'urged' rather than required by the CAP. This suggestive language allows leeway to advertisers.

While it might be considered a waste of resources if advertisers were to violate the CAP, as the advertisement could be withdrawn from circulation, the risk of this depends on the purpose of the advertisement. If the advertisement is an isolated one that was created to capitalise on a recent event, the CAP will not act as a deterrent because the advertisement would have served its purpose by the time a complaint was made. Even then, there is no guarantee the complaint will be upheld. An intentional violation is possible under the law as well, as an entity may intentionally commit passing off, but the force of the Code is limited as it provides an extra-legal remedy that does not award damages.⁸⁰

⁷⁹ ASA, 'Privacy: Implied endorsements' (3 May 2022) at www.asa.org.uk/advice-online/privacy-implied-endorsements.html (accessed 23 January 2023): 'If it is obvious from the context that the celebrity or personality shown has not endorsed the product, the ASA is unlikely to uphold complaints. Examples have included the use of Cherie Blair to promote beer and Prince Charles to promote safety eyewear. If there is a definite implication that an endorsement exists or if it is unclear whether the personality has endorsed a product or service, marketers are in danger of breaching the Code (*Herbametrix Ltd*, 3 July 2002).'

⁸⁰ Stallard (1997) 573.

C. Trade Marks

Trade marks are governed by the Trade Marks Act 1994 (TMA 1994). A trade mark must be registered to receive protection. In order to be registered, a mark must be a sign capable of being represented on the register and capable of distinguishing the services of one undertaking from those of another.⁸¹ Infringement occurs if a defendant uses the mark or a similar mark on goods and services, pursuant to section 10 of the 1994 Act. Trade mark law can be useful in protecting a name and signature against unauthorised use that is confusing under section 10(1)–(2). Additionally, if the mark has a reputation, section 10(3) can protect against use that is detrimental to the distinctive character or repute of the mark, or which takes advantage of the repute. The ability to protect against non-confusing uses under section 10(3) allows trade mark law to go further than passing off in protecting persona. However, section 10(3) does not go as far as to prevent misappropriation in the way that a publicity right would, because the mark must have a reputation for the goods and services for which it is registered. The requirement for a reputation under section 10(3) means that this level of protection will only be available to very famous individuals.

Trade marks can be useful in protecting certain aspects of persona: name and signature. These aspects are likely to meet the requirements for registration. As such, individuals can register their names and signatures to prevent confusing use on similar goods and services under section 10(1) and (2) of the TMA 1994. If the provisions on dilution and tarnishment for non-confusing uses under section 10(3) of the Act are applied, trade marks could fill the gap created by the confusion requirement of passing off with regard to name and persona. The effectiveness of this section depends on whether the trade mark ‘has a reputation in the United Kingdom.’⁸² It is not awareness of the reputation of the individual, but rather awareness of the trade mark as used in the course of trade that is important. As such, while section 10(3) takes a more misappropriation-based approach than passing off and the CAP, it does not go so far as to prevent use of persona altogether.

The classes for which marks can be registered are potentially limited. Generally, marks will be accepted for a wide range of goods and services, but the *Trade Marks Manual* suggests that marks will not be accepted for ‘mere image’ carriers. ‘Mere image carriers’ are goods that are described by the mark in question, such as ‘posters, photographs transfers and figurines.’⁸³ An example of a mark that was rejected on this basis is ‘Linkin Park’. The band ‘Linkin Park’

⁸¹ TMA 1994, s 1.

⁸² TMA 1994, s 10(3).

⁸³ UK Intellectual Property Office, ‘Manual of trade marks practice’ (14 January 2019) at www.gov.uk/guidance/trade-marks-manual/the-examination-guide (accessed 31 October 2022). ‘The examination guide, Part B: Alphabetical list of examination practice, Image Carriers’: ‘In respect of image carriers such as posters, calendars, photographs, transfers and figurines, the name of the famous person or group is likely to be seen as the subject matter of such goods ...’.

attempted to register the band name for posters, but the registration was rejected on the basis that the mark described the goods in question.⁸⁴

i. Assessment of Trade Marks

Trade marks can be used to protect names and signatures. It is unlikely that other aspects of persona would be protected due to the requirements for registration. Furthermore, attempts to register other aspects of persona, such as likeness, would be futile. Even if an individual were able to register her likeness, only the specific likeness or a confusingly similar likeness would be protected. Despite advances in trade mark law to include sounds, voice would not be protected under this regime; only the specific sound clip would receive protection.

D. Copyright

Copyright is governed by the Copyright, Designs and Patents Act 1988 (CDPA 1988). For copyright to subsist, the work must demonstrate the author's own intellectual creation to meet the requirement of originality.⁸⁵ The work must be within the term of protection and also fall within the subject matter listed under the CDPA 1988. The defendant's work must relate to the whole or substantial part of the claimant's work, be derived from the claimant's work and be objectively similar to it in order to infringe.⁸⁶

While a claim in copyright infringement for use of a photograph, film or sound recording could be useful, such a claim would only be in relation to the work in question or a substantially similar work. To illustrate, it is worth considering *Fenty* and *Irvine*. In both cases, the defendants had secured the appropriate copyright licence to use the photographs of the claimants. In *Irvine*, Laddie J dismissed the issue of copyright stating that 'There is no question of copyright infringement because the right to use this photograph was purchased from a sporting photograph agency.'⁸⁷ Similarly in *Fenty*, Birss J stated that 'A celebrity may control the distribution of particular images in which they own the copyright but that right is specific to the particular photographs in question.'⁸⁸ These statements make the limits of copyright clear: it can only be used to protect persona if the individual owns the copyright in a work that has been substantially copied. It does not protect the attributes of persona.

Even if there is an issue of infringement of a copyright work, this is unlikely to aid in the protection of persona because copyright will be owned by the author, or

⁸⁴ *Linkin Park LLC's Application* [2006] ETMR 74. See also *Elvis Presley Trade Marks* [1997] RPC 543.

⁸⁵ *Pasternak v Prescott* [2022] EWHC 2695 (Ch); *Martin v Kogan* [2017] EWHC 2927 (IPEC); *SAS Institute Inc v World programming Ltd* [2013] EWCA Civ 1482.

⁸⁶ CDPA 1988, ss 16–21.

⁸⁷ *Irvine* [2002] [7].

⁸⁸ *Fenty* [2013] [2].

the party that has secured a licence or assignment.⁸⁹ In the case of photographs, the subject of the work, rather than the author, will seek to protect her attributes (with the exception of 'selfies', assuming the originality criterion is met, where the subject of the photograph is also the author). An exceptional circumstance would be if the photograph had been privately commissioned. Under section 85 of the CDPA 1988, there is a right to privacy of photographs commissioned as private or domestic photographs. The shortcoming of this provision is that the person in the photograph may not be the commissioner.⁹⁰

Copyright does not add to the persona protection regime because it protects copyright works rather than the attributes of persona, and the individual featured is unlikely to be the owner of the copyright work unless she has secured an assignment.

E. Breach of Confidence

There has only been one breach of confidence case in the UK that considered the commercialisation of persona; the 2007 case of *Douglas v Hello! Ltd*.⁹¹ At trial and on appeal, the Douglasses were awarded £3,750 for mental distress for invasion of their privacy by publication of unauthorised wedding photographs. This was not further appealed. In the House of Lords, their Lordships had to consider whether the publication of the photographs by *OK!* should be remedied, in light of *Hello!*'s exclusive licence with the Douglasses. The commercial agreement between *OK!* and the Douglasses played an influential role in the 3:2 majority judgment. Lord Hoffmann applied the traditional breach of confidence test established in *Coco v Clark*⁹² and held that the contract granted exclusivity to the photos. The Douglasses were entitled to commercialise this exclusivity since they were in 'control of the information'.⁹³ Lord Hoffmann noted the concern of Lord Nicholls and Lord Walker in their dissents, as they questioned why information that was never intended to be kept secret should be protected by the law of confidence.⁹⁴

The outcome of *Douglas v Hello!* indicates that a party to an exclusive contract may be able to seek redress against a third party who has undermined their exclusivity. This raises the question of whether an exclusive advertising campaign with a celebrity could be protected. On the one hand, the exclusivity of the relationship and the ability of the celebrity to approve of which photographs are used in a campaign would lend itself to *Douglas*-style protection. On the other hand, the

⁸⁹ CDPA 1988, s 11.

⁹⁰ Sundara Rajan, MT, *Moral Rights: Principles, Practice and New Technology* (Oxford University Press 2011) 105.

⁹¹ *Douglas v Hello! Ltd* [2007] UKHL 21.

⁹² *Coco v AN Clark (Engineers) Ltd* [1969] RPC 41.

⁹³ *Douglas v Hello!* [2007] [118].

⁹⁴ *ibid* [120].

facts of *Douglas* centred around an essentially private event – the couple’s wedding. The House of Lords did not enunciate a new cause of action, and did not outline a new test. As such, this case is very fact-specific and not one it would be recommended to rely on due to the uncertainty of the application to different scenarios. It is the only case of its kind to date, and it has yet to be seen whether the courts will move towards protecting persona through *Douglas*-style breach of confidence. Such a move seems unlikely, as the Lords rejected the opportunity to make it. Lord Hoffmann stated:

There is in my opinion no question of creating an ‘image right’ or any other unorthodox form of intellectual property. The information in this case was capable of being protected, not because it concerned the Douglasses’ image any more than because it concerned their private life, but simply because it was information of commercial value over which the Douglasses had sufficient control to enable them to impose an obligation of confidence.⁹⁵

F. Defamation

The law on defamation is governed by the common law and the Defamation Act 2013. This statute was introduced as a result of the impact of the Human Rights Act 1998, as it was found that the UK’s approach to defamation stifled freedom of expression.⁹⁶ The Act introduced a threshold test for determining whether a statement is defamatory. A statement, which means ‘words, pictures, visual images, gestures or any other method of signifying meaning’,⁹⁷ is defamatory if publication causes serious harm to the reputation of the claimant.⁹⁸

If persona is used in a manner that is defamatory, it is likely to be in contravention of the Advertising Codes, which prohibit the offensive use of individuals in all advertising mediums. An example is an advertisement that uses the persona of someone who has spoken out against the product being advertised, such as cigarettes. If the public thinks this person has collaborated with a cigarette brand, she may be perceived as hypocritical. This may give rise to a claim in defamation if the statement is untrue. Relying on defamation could be more advantageous than the Advertising Codes due to the availability of damages. In the past, amateur golfer Cyril Tolley succeeded in his defamation claim against Fry’s chocolate, as the perception of commercial exploitation of his persona would have compromised his amateur status.⁹⁹ More recently, Kevin Pietersen claimed against Specsavers for using a photograph of him in an advertisement that suggested he

⁹⁵ *ibid* [134].

⁹⁶ Jones, M, Dugdale, A and Simpson, M, (eds), *Clerk and Lindsell on Torts* (21st edn, Sweet & Maxwell 2016) § 22-03.

⁹⁷ Defamation Act 2013, s 15.

⁹⁸ Defamation Act 2013, s 1.

⁹⁹ *Tolley v JS Fry & Sons Ltd* CA [1930] 1 KB 467.

cheated in a cricket match.¹⁰⁰ The claim was settled out of court. There have been no other recent cases of this nature, as most defamation cases tend to deal with the publication of unsavoury stories and photographs.¹⁰¹ Defamation does not generally protect the individual against unauthorised use of persona. The position of defamation is best explained by Bains, who states:

Defamation law is however not the best means by which to safeguard a celebrity's personality since it does not protect against appropriation and exploitation of one's personality, but only against the criticism and ridicule of their personality.¹⁰²

G. Summary of the UK Approach to Persona Protection

The most useful cause of action for protecting persona in the UK is passing off, but this only applies where there has been a false endorsement that amounts to deception. Mere confusion of consumers is not enough. The BCAP is useful in protecting persona, but the CAP is less useful because it protects against certain uses of persona rather than persona per se. Furthermore, no damages are awarded for breach of the Codes. Neither of these avenues confers a proprietary right to persona. Trade marks can be used for proprietary rights in name and signature, but these are the only two aspects of persona that are likely to meet the registration requirements. Trade marks can protect against confusing uses, or dilution or tarnishment if the mark has a reputation. Copyright, breach of confidence and defamation are too limited in scope to be considered useful in protecting persona.

The UK's piecemeal approach provides limited protection to persona. There is no strict liability cause of action that protects against unauthorised use of persona. Rather, as explained, various causes of action can be utilised when persona is employed in circumstances that would fit within the existing requirements.

The next section will reveal that the US approach, which confers expansive persona protection, facilitates claims against unauthorised uses of persona in many circumstances as well as granting a proprietary right.

II. US Persona Protection

The right of publicity was first recognised in 1953 in the case of *Haelan Laboratories v Topps Chewing Gum*.¹⁰³ This case concerned the use of baseball players' photographs on cards by two rival chewing-gum makers. Haelan's

¹⁰⁰ Bolton, P, 'Specsavers say sorry to Kevin Pietersen for Hot Spot row' *The Telegraph* (2 October 2013).

¹⁰¹ See, eg: *Horan v Express Newspapers* [2015] EWHC 3550 (QB); *Elliott v Rufus* [2015] EWCA Civ 121; *Cooke & Anor v MGN Ltd & Anor* [2014] EWHC 2831 (QB).

¹⁰² Bains (2007) 167.

¹⁰³ *Haelan Laboratories Inc v Topps Chewing Gum Inc* 202 F 2d 866 (2d Cir 1953).

predecessor had secured exclusive licences with the players concerned. Its competitor, Topps, secured licences for the same players and used their images on its cards. Some licences were secured through the defendant's agent. In those instances, the defendant was liable for inducing breach of contract. However, other licences were secured through a third party, Russell Publishing Co, which independently secured grants from the players. Because the defendant secured these grants through Russell, it had not committed the alleged offence of knowingly inducing breach of contract.¹⁰⁴ Furthermore, in some instances, Topps had no licence and no authorisation at all from the players.¹⁰⁵

The defendant in the case argued that that licences secured by the plaintiff were 'a release of liability, because a man has no legal interest in the publication of his picture other than his right of privacy'.¹⁰⁶ The court disagreed with this argument. Recognising a right of publicity, the 2nd Circuit Court stated:

We think that, in addition to and independent of the right of privacy (which in New York derives from statute), a man has a right in the publicity value of his photograph, ie, the right to grant the exclusive privilege of publishing his picture, such a grant may be validly made 'in gross,' ie without an accompanying transfer of a business or of anything else ... This right may be called a 'right of publicity.' For it is common knowledge that many prominent persons (especially actors and ball-players), far from having their feelings bruised through public exposure of their likenesses, would feel sorely deprived if they no longer received money for authorizing advertisements, popularizing their countenances ... This right of publicity would usually yield them no money unless it could be made the subject of an exclusive grant which barred any other advertiser from using the pictures.¹⁰⁷

The 2nd Circuit applied New York law in coming to its decision. The case was remanded and the plaintiff was successful.¹⁰⁸

Despite the outcome of *Haelan*, it was not until 1984 that the New York Appeals Court found that the right of publicity was part of New York's privacy statute,¹⁰⁹ thus refuting the idea (in New York) that privacy is only suitable for emotional distress.¹¹⁰ This incorporation was ironic, as it was the unsuitability of privacy that led to the creation of a publicity right. Yet publicity was subsequently subsumed by privacy in New York. In other States, the common law right of publicity is independent from the common law and/or statutory rights to privacy. It was not until 2021 that New York used the terminology of 'publicity', and this terminology has only been used in recognising a statutory post-mortem right.¹¹¹

¹⁰⁴ *ibid* [868].

¹⁰⁵ *ibid*.

¹⁰⁶ *ibid*.

¹⁰⁷ *ibid*.

¹⁰⁸ Hylton, J, 'Baseball cards and the birth of the right of publicity: *Haelan Laboratories v Topps Chewing Gum*' (2001) 12(1) *Marq Sports L Rev* 273, 288.

¹⁰⁹ New York Civil Rights Law, Art 5, ss 50 and 51.

¹¹⁰ *Stephano v News Group Publications Inc* 474 NE 2d 580 (NY 1984) [584].

¹¹¹ McCarthy, T and Schechter, R, *Rights of Publicity and Privacy* (Thomson Reuters 2022) § 6:101.

The common law and statutory rights to privacy and publicity are State-based, protecting against misappropriation of persona and conferring proprietary rights. In addition, false endorsement, under section 43(a) of the Lanham Act,¹¹² is a federal cause of action that protects against confusing uses of persona. Since this cause of action is federal, it will be examined first. Following this, the approach to persona protection in New York and California will be examined.

A. Federal False Endorsement Action

The Lanham Act was originally enacted in 1946.¹¹³ In 1988, it was amended to include the prohibition of false endorsement, codifying existing judicial interpretations of the Act.¹¹⁴ Section 43(a) of the Lanham Act prohibits the use by any person in commerce of any word, term, name, symbol or device that is likely to cause confusion as to the 'connection or association of such person with another person, or as to the origin, sponsorship, or approval of his or her goods, services, or commercial activities by another person.'¹¹⁵ This section of the chapter will compare false endorsement against passing off to make the argument that the requirements of confusion and reputation are less onerous than deception and goodwill. The effect of this is that false endorsement under the US Lanham Act is a more versatile tool in protecting persona than is passing off in the UK.

The current approach to confusion under false endorsement is to apply one of several tests, with similar factors, to determine whether there is a likelihood

¹¹² Lanham Trade Mark Act 1946.

¹¹³ Hortwitz, E and Levi, B, 'Fifty Years of the Lanham Act: A Retrospective of Section 43(a)' (1996) 7(1) *Fordham Intell Prop Media & Ent LJ* 58.

¹¹⁴ Senate Judiciary Committee, Report 515 – Trade Mark Law Revision Act of 1988, 100th Congress, 2d Session, 40; *Waits v Frito Lay* 978 F 2d 1093 (9th Cir 1992) [1106].

¹¹⁵ Lanham Act, s 43(a) ('Civil action') provides:

(1) Any person who, on or in connection with any goods or services, or any container for goods, uses in commerce any word, term, name, symbol, or device, or any combination thereof, or any false designation of origin, false or misleading description of fact, or false or misleading representation of fact, which—

(A) is likely to cause confusion, or to cause mistake, or to deceive as to the affiliation, connection, or association of such person with another person, or as to the origin, sponsorship, or approval of his or her goods, services, or commercial activities by another person, or

(B) in commercial advertising or promotion, misrepresents the nature, characteristics, qualities, or geographic origin of his or her or another person's goods, services, or commercial activities,

shall be liable in a civil action by any person who believes that he or she is or is likely to be damaged by such act.

of confusion.¹¹⁶ The 9th Circuit uses the *Sleekcraft* test,¹¹⁷ and other circuits have used a variation of this. The factors in *Sleekcraft* are:

- (a) the level of recognition that the plaintiff has among the segment of the society for whom;
- (b) the defendant's product is intended;
- (c) the relatedness of the fame or success of the plaintiff to the defendant's product;
- (d) the similarity of the likeness used by the defendant to the actual plaintiff;
- (e) evidence of actual confusion;
- (f) marketing channels used;
- (g) likely degree of purchaser care;
- (h) defendant's intent on selecting the plaintiff; and
- (i) likelihood of expansion of the product lines.¹¹⁸

The application of these factors can be illustrated by case of *White v Samsung*.¹¹⁹ Samsung created an advertisement that featured a robot wearing a red dress and blonde wig, standing beside the 'Wheel of Fortune'. Vanna White, the letter turner on the *Wheel of Fortune* gameshow, sued under the right of publicity and false endorsement. In applying the above factors to assess false endorsement, the court reasoned that the strength of the mark related to the recognition of the celebrity by those at whom the Samsung advertisement was directed, and held that White's 'mark', in the form of her persona, was strong. They then considered White's 'goods' to be similar to Samsung's VCRs. On the third factor (c), the similarity of marks, the court held that there was ambiguity: 'On the one hand, all aspects of the robot ad identify White; on the other, the figure is quite clearly a robot, not a human.'

No evidence of actual confusion was presented to address the fourth factor (d). The marketing channels under the fifth factor (e) were found to be the same, as Vanna White has appeared in magazines and the Samsung advertisement also appeared in magazines. For the sixth factor (f), the court found that consumers would exercise a low level of care in determining who endorses VCRs. The intent of the defendant was particularly relevant in finding confusion:

We do not disagree that defendants intended to spoof Vanna White and 'Wheel of Fortune'. That does not preclude, however, the possibility that the defendants also intended to confuse consumers regarding endorsement. Another ad in the series depicted Morton Downey Jr as a presidential candidate in the year 2008. Doubtless, defendants intended to spoof presidential elections and Mr Downey through this ad. Consumers, however, would likely believe, and would be correct in so believing, that

¹¹⁶ Other tests include: *Standard & Poor's Corp v Commodity Exchange Inc* 683 F 2d 704 (2d Cir 1982); *Polaroid Corp v Polarad Electronics Corp* 287 F 2d 492 (2d Cir 1961).

¹¹⁷ *AMF Inc v Sleekcraft Boats* 599 F 2d 341 (9th Cir 1979).

¹¹⁸ The *Sleekcraft* test was used in: *Jackson v Odenat* 9 F Supp 3d 342 (2014); *Downing v Abercrombie & Fitch* 265 F 3d 994 (9th Cir 2001); *White v Samsung Electronics America Inc* 971 F 2d 1395 (9th Cir 1992).

¹¹⁹ *White v Samsung* (1992).

Mr Downey was paid for his permission and was endorsing Samsung products. Looking at the series of advertisements as a whole, a jury could reasonably conclude that beneath the surface humour of the series lay an intent to persuade consumers that celebrity Vanna White, like celebrity Downey, was endorsing Samsung products.¹²⁰

The use of a robot was of a different nature from the Downey advertisement, which featured an actual photograph of Downey. However, the court found that the use of these figures was comparable, as both uses were implying endorsement.

The holding that Samsung both attempted a spoof of White and wanted to imply endorsement is irreconcilable from a UK perspective, and would probably not have resulted in a successful passing-off claim due to the misrepresentation requirement. This indicates that the US is more lenient when it comes to assessing confusion under false endorsement.¹²¹ In contrast, the UK assesses misrepresentation in passing off by determining whether consumers are deceived that a product has been authorised by the claimant. In *Fenty*, Justice Birrs considered the evidence and assessed that ‘Many will buy a product because they think [Rihanna] has approved of it. Others will wish to buy it because of the value of the perceived authorisation itself. In both cases they will have been deceived.’¹²² This standard is higher than that of false endorsement because ‘mere confusion’ is not enough. The approach of passing off has remained rooted in the impact on consumers, while false endorsement considers impact on the persona.

The lower standard for confusion in false endorsement as compared to misrepresentation in passing off is also illustrated by the case of *Burck v Mars*.¹²³ The well-known Naked Cowboy, a New York street performer, brought a false endorsement claim against Mars Inc for an advertisement featuring a blue M&M dressed in the get-up of the Naked Cowboy.¹²⁴ The defendants conceded that they satisfied the first three elements of a false endorsement claim, that is, they used the Naked Cowboy’s persona in commerce, falsely or misleadingly, representing a connection with the goods, but they denied that the public would be confused as to whether the Naked Cowboy had an association with M&Ms. The court thought differently and held that ‘the complaint has alleged sufficient facts to support a false endorsement claim.’¹²⁵

The success of false endorsement actions in situations where confusion is questionable illustrates how much lower the threshold is when compared to passing off. Another noticeable difference between false endorsement and passing off is that false endorsement requires reputation rather than goodwill. To succeed in a claim, a plaintiff’s persona must have ‘commercial value.’¹²⁶ While reputation

¹²⁰ *ibid* [1401].

¹²¹ *ibid* [1401]. The last factor was not assessed because it did not ‘appear apposite to a celebrity endorsement case such as this’.

¹²² *Fenty* [2013] [72].

¹²³ *Burck v Mars Inc* 571 F Supp 2d 446 (SDNY 2008).

¹²⁴ *ibid*.

¹²⁵ *ibid* [9].

¹²⁶ *Condit v Star Editorial Inc* 259 F Supp 2d 1046 (ED Cal 2003) [1051]; Beser, J, ‘False Endorsement or First Amendment: An analysis of celebrity trade mark rights and artistic expression’ (2004) 41 *San Diego L Rev* 1787, 1808.

is an important factor in false endorsement, it is less onerous than goodwill. An illustration of the role of reputation can be seen in the New York case of *Allen v National Video Inc.*¹²⁷ Woody Allen claimed that the use of look-alike photographs in magazine and newspaper advertisements, as well as counter cards, constituted false endorsement.¹²⁸ The advertisements used disclaimers to say that a look-alike was used but the counter cards did not. He was successful under section 43(a) of the Lanham Act as the court found that, even with the use of look-alikes, the public would be confused into thinking the defendants were associated with the plaintiff. In applying section 43(a), there was no assessment of whether Allen was a trader. Rather, the court noted Allen's reputation had 'significant, exploitable, commercial value'.¹²⁹

Unlike in *Fenty*,¹³⁰ there was no discussion of the plaintiff's merchandising and endorsement deals. This is significant, because Allen succeeded on his claim in 1985, whereas in 1997 in the UK, an interlocutory injunction was denied to the pop group ABBA, which sought to prevent a UK party from selling merchandising bearing the name of the group and likenesses of the singers.¹³¹ The application failed on two grounds. First, ABBA did not have any current trading in the UK, thus defeating the goodwill requirement. The group had arranged for a licence for jigsaw puzzles bearing the singers' names and faces, but that licence would come into effect only after the application. The licence was negotiated in September 1976 and would come into effect on 1 January 1977. The application was heard on 2 November 1976. Second, the use of the singers' images on merchandise would not lead the public to believe that they had endorsed the said merchandise. Oliver J opined:

I do not think anyone reading the advertisements of which complaint is made or indeed receiving the goods described in them could reasonably imagine that all pop stars named in the advertisements were giving their approval to the goods offered or that the defendants were doing anything more than catering for a popular demand among teenagers for effigies of their ideals ... To suggest that there is some proprietary right in the plaintiff's name which entitled them to sue simply for its use is contrary to all the English authorities ...¹³²

It was not until the 1991 case of *Mirage v Counterfeit Clothing*¹³³ that character merchandising was recognised in the UK as an established activity, and subsequently the reasoning was expanded to persona in *Irvine* in 2003.¹³⁴

¹²⁷ *Allen v National Video Inc* 610 F Supp 612 (SDNY 1985).

¹²⁸ Allen also brought a claim under the right of publicity, but the court found the false endorsement action more suitable because a look-alike was used rather than a photograph of Allen.

¹²⁹ *Allen* [1985].

¹³⁰ *Fenty* [2013].

¹³¹ *Lyngstad v Anabas Products Ltd* [1977] FSR 62.

¹³² *ibid* [68].

¹³³ *Mirage Studios v Counterfeit Clothing Co* [1991] FSR 145.

¹³⁴ *Irvine v TalkSport* [2003] EWCA Civ 423.

The interlocutory application in *Anabas* did not proceed to trial, so the UK courts did not have the opportunity to consider the status of passing off with regard to persona until the *Irvine* case.

i. Assessment of False Endorsement

False endorsement provides a high level of protection for persona because the threshold for confusion is apparently low, even though it is meant to protect against deception,¹³⁵ and there is a need to show reputation rather than goodwill. In New York, this means that false endorsement offers potentially more extensive persona protection than the right to privacy (discussed in section II.B), as it is not limited to certain aspects of persona. Indeed, Allen and the Naked Cowboy succeeded under false endorsement but not under the right of publicity (termed 'privacy' in New York). In California, false endorsement is arguably more limited than publicity rights due to the confusion requirement. While this may seem contradictory, as it has been argued that the confusion threshold is more akin to misappropriation, the threshold still exists, whereas the very broad publicity rights in California only require there to be a misappropriation. Overall, false endorsement can be used to protect all aspects of persona once there has been a minimum level of confusion, but it should be noted that it does not grant a proprietary right in persona.

B. New York Persona Protection under the Right to Privacy and the Post-Mortem Right of Publicity

Since 1903, sections 50 and 51 of Article 5 of the New York Civil Rights Law have provided persona protection in the form of a right to privacy. This right to privacy essentially performs the function of a publicity right, despite the terminology. Both sections provide similar protection, the main difference being that a violation of section 50¹³⁶ is a misdemeanour, whereas section 51¹³⁷ provides a cause of action

¹³⁵ *Allen* (1985) [625]: 'Application of the act is limited, however, to potential deception which threatens economic interests analogous to those protected by trademark law.'

¹³⁶ Section 50 ('Right of privacy') provides 'A person, firm or corporation that uses for advertising purposes, or for the purposes of trade, the name, portrait or picture of any living person without having first obtained the written consent of such person, or if a minor of his or her parent or guardian, is guilty of a misdemeanour.'

¹³⁷ Under s 51 ('Action for injunction and for damages'), 'Any person whose name, portrait, picture or voice is used within this state for advertising purposes or for the purposes of trade without the written consent first obtained as above provided may maintain an equitable action in the supreme court of this state against the person, firm or corporation so using his name, portrait, picture or voice, to prevent and restrain the use thereof; and may also sue and recover damages for any injuries sustained by reason of such use and if the defendant shall have knowingly used such person's name, portrait, picture or voice in such manner as is forbidden or declared to be unlawful by section fifty of this article, the jury, in its discretion, may award exemplary damages ...'

in private law. Section 51 is used more often in protecting persona as it allows for the civil claim. More recently, section 50 was amended to include section 50(f), which introduced a civil claim for a post-mortem right of publicity.

Section 51 states the aspects of persona that are protected. Name, portrait, picture and voice are protected against unauthorised use for advertising and/or purposes of trade. Voice was added to section 51 in 1995.¹³⁸ Prior to this, claims based on unauthorised use of voice were unsuccessful.¹³⁹ In order to use these attributes, written consent must be obtained from the person. Since the right of privacy protects against misappropriation, the best way to discuss this cause of action is by examining the protection conferred to different elements of persona. Since 2021, protection has been granted post-mortem by means of a right of publicity for the deceased under section 50(f) to prevent unauthorised use of name, voice, signature, photograph, likeness and, if likely to deceive, digital replica. At the time of writing, there have been no cases brought under the new post-mortem right, so in this section we focus on living individuals.¹⁴⁰

i. Voice

There have been no voice cases since the amendment in 1995, so the scope of 'voice' is unclear.¹⁴¹

ii. Name

New York courts have provided varying interpretations of what can be protected under 'name'. In the case of *Pfandler v Pfandler Co*, the plaintiff's surname was used by a company for the purposes of advertising their vacuum fermentation.¹⁴² In interpreting the law, Rodenbeck J stated that 'The word "name", as used in the statute, must mean a person's full name. It was evidently the purpose of the Legislature to prevent the use of the full name of a person, by which alone he could be identified.'¹⁴³ The restrictive approach has continued to be observed by New York courts. Claims against unauthorised use of stage names¹⁴⁴ and fictitious¹⁴⁵ names have been rejected as being outside the scope of statutory protection.

¹³⁸ 1995 NY Laws 674, § 1, came into effect 1 November 1995.

¹³⁹ *Maxwell v NW Ayer Inc* 605 NYS 2d 174 (1993); *Tin Pan Apple v Miller Brewing Co* 737 F Supp 826 (SD NY 1990); *Lahr v Adell Chem Co* 300 F 2d 256 (1st Cir 1962).

¹⁴⁰ See Perot, E, 'Post-mortem rights of publicity – A comparison of New York and California' in Rosati, E and Bosher, H (eds), *Developments and Directions in Intellectual Property Law: 20 Years of the IPKat* (Oxford University Press 2023) 348 for discussion of the implications of introducing the post-mortem right of publicity in New York.

¹⁴¹ Czarnota, P, 'The right of publicity in New York and California: A critical analysis' (2012) 19 *Jeffrey S Moorad Sports LJ* 481, 498.

¹⁴² *Pfandler v Pfandler Co* 186 NYS 725 (Sup 1920).

¹⁴³ *ibid* [726].

¹⁴⁴ *Davis v RKO Radio Pictures* 16 F Supp 195 (SDNY 1936).

¹⁴⁵ *Geisel v Poynter Products Inc* 295 F Supp 331 (SDNY 1968) [355].

It is possible that a nickname may be protected, but it would have to be ‘so notorious to the public that it had come closely and widely identified with the person who bears it.’¹⁴⁶ There have been no successful nickname cases to date. It should be noted that rapper ‘50 cent’ sued Taco Bell for using his performer name but settled the case before it went to trial.¹⁴⁷ It would have been interesting to see whether the court would have treated ‘50 cent’ as the plaintiff’s name within the meaning of section 51, as he is more widely known to the public by this moniker than his legal name.

iii. Portrait and Picture

Portrait and picture have been interpreted by the courts as including a ‘recognizable likeness.’¹⁴⁸ Likeness is limited to real people and does not include a ‘character created or a role performed by a living person.’¹⁴⁹ This explains why the Naked Cowboy’s claim against Mars for depicting his likeness on a billboard was denied under the right of privacy but allowed to proceed under false endorsement (see section II.A). There have been other instances of claims succeeding under false endorsement but not privacy due to the interpretation of likeness.

In *Allen*, the claim under the right of privacy failed as the court considered it better suited to the Lanham Act analysis, and because the remedies available under the Lanham Act would be the same as under the right-of-publicity claim. In dealing with the question of when a look-alike would infringe a right of publicity, the court stated:

[I]f defendants had used, for example, a clearly recognizable painting or cartoon of the plaintiff, it would certainly constitute a ‘portrait or picture’ within the meaning of the statute. The case of a look-alike, however, is more problematic. A painting, drawing or manikin has no existence other than as a representation of something or someone; if the subject is recognizable, then the work is a ‘portrait.’ Defendant Boroff, however, is not a manikin. He is a person with a right to his own identity and his own face. Plaintiff’s privacy claim therefore requires the court to answer the almost metaphysical question of when one person’s face, presented in a certain context, becomes, as a matter of law, the face of another.¹⁵⁰

The court went on to state that where a look-alike ‘seems indistinguishable from the real person and the context of the advertisement clearly implies that he or she is the real celebrity, a court may hold as a matter of law that the look-alike’s face is a “portrait or picture” of the plaintiff’, citing the case of *Onassis v Christian Dior*

¹⁴⁶ *DeClemente v Columbia Pictures Industries Inc* 860 F Supp 30 (EDNY 1994) [44].

¹⁴⁷ Ware, H, ‘Taco you very much, 50 cent wins suit’ *New York Post* (24 November 2009) at <http://nypost.com/2009/11/24/taco-you-very-much-50-cent-wins-suit/> (accessed 10 September 2019).

¹⁴⁸ *Burck v Mars, Inc* 571 F Supp 2d 466 (SDNY 2008) [451]; *Onassis v Christian Dior-New York* 472 NYS 2d 254 (NY Sup Ct 1984) [261]; *Young v Greneker Studios* 26 NYS 2d 357 (NY Sup Ct 1941).

¹⁴⁹ *Burck v Mars Inc* (2008) [449].

¹⁵⁰ *Allen* (1985) [622].

*NY Inc.*¹⁵¹ In the case of *Onassis*, Jacqueline Kennedy successfully claimed that her right of privacy was infringed by an advertisement that used a look-alike, because that advertisement gave the impression that the plaintiff had actually appeared in it:

It is the over-all impression being made that counts. The statute necessarily contemplates that a depiction may not be precise, for the words 'portrait or picture' comprehend a sketch, a cartoon, or a caricature which selectively omits some features and accentuates others. There are then points of resemblance and points of difference and distortion, but if done well there is instant recognition. What difference if a sketch is used instead of a look-alike model in connection with a commercial promotion? The end result is the same – trading on the name or features of another and the unwarranted commercial exploitation of a person who has not consented to be commercially exploited.¹⁵²

This explanation may appear counterintuitive, as it indicates that a sketch might be more readily caught under the right of privacy than a look-alike due to the inevitable physical differences of a look-alike, but the *Allen* case explained that

the question ... is not whether some, or even most people will be *reminded* of the plaintiff when they see this advertisement. In order to find that the photograph contains plaintiff's 'portrait or picture,' the court would have to conclude that most persons who could identify an actual photograph of plaintiff would be likely to think that this was actually his picture.¹⁵³

In a recent case concerning likeness, Rockstar Games was sued by Lindsay Lohan and Karen Gravano in New York for using their likenesses to create characters in the *Grand Theft Auto* video game.¹⁵⁴ The claims were rejected in the New York court because the video game did not use their actual likeness and the use did not fall under the statutory definition of 'trade' or 'advertising' in the New York statute, as a video game is a work of fiction and satire.¹⁵⁵

iv. *Life Story*

The New York right to privacy protects certain aspects of persona. It does not, however, protect the right to 'life story', as this falls within the ambit of First

¹⁵¹ *Onassis v Christian Dior NY Inc* 472 NYS 2d 254 (S Ct NY Co 1983).

¹⁵² *ibid* [262].

¹⁵³ *Allen* (1985) [624].

¹⁵⁴ *Lohan v Take-Two Interactive Software Inc* 31 NY3d 111 (2018); *Gravano v Take-Two Interactive Software Inc* 142 AD 3d 776 [1st Dept 2016]; Love, F, 'Lindsay Lohan sues "Grand Theft Auto V" makers for allegedly using her likeness in video game' *Newsday* (2 July 2014) at www.newsday.com/entertainment/celebrities/lindsay-lohan-sues-grand-theft-auto-v-makers-for-allegedly-using-her-likeness-in-video-game-1.8641134 (accessed 29 July 2019).

¹⁵⁵ *Lohan* (2018); *Gravano* (2016); Kain, E, 'Court tosses out Lindsay Lohan's "Grand Theft Auto V" lawsuit' *Forbes* (2 September 2016) at www.forbes.com/forbes/welcome/?/sites/erikkain/2016/09/02/court-tosses-out-lindsay-lohans-grand-theft-auto-v-lawsuit/&toURL=http://www.forbes.com/sites/erikkain/2016/09/02/court-tosses-out-lindsay-lohans-grand-theft-auto-v-lawsuit/&refURL=&referrer=#7fc66c7e6f2c (accessed 29 July 2019).

Amendment protection. Nonetheless, a 2013 claim questioned the correct approach to this concept. In the case of *Porco*, Lifetime Entertainment Services made a television film about a murderer but fictionalised some aspects of the account.¹⁵⁶ The convicted murderer, Chris Porco, sued from jail. Lifetime was restrained from airing the movie until the order was reversed in 2014. Lifetime then succeeded on its motion to dismiss in 2015, but this was reversed in 2017. In May 2020, the Supreme Court of New York dismissed both Lifetime and Porco's summary judgment applications. The appellate court cited *Messenger*, which stated that 'a work may be so infected with fiction, dramatization or embellishment that it cannot be said to fulfil the purpose of the newsworthiness exception'.¹⁵⁷ The court ruled that it was a question for the jury whether the film was 'materially and substantially fictitious', so as to bring it outside of the realm of the newsworthiness protection and thus constitute a right of privacy infringement.

An amicus brief was filed in October 2020 by several organisations, including The Authors Guild and the Media Coalition Foundation. The brief argued that the 'materially and substantially fictitious' standard established by the trial court 'unduly expanded New York's limited right of privacy/publicity, and thereby chilled the First Amendment rights of authors, publishers, booksellers'.¹⁵⁸ In June 2021, the appellate court reversed the order and granted summary judgment in favour of Lifetime.¹⁵⁹ In applying *Messenger*, the court noted that the newsworthiness exception applied to movies and other types of expressive works.¹⁶⁰ The court stated, however, that where a film is 'substantially fictionalized', it will fall outside the remit of the newsworthiness exception because it would be 'an attempt to trade on the persona of the plaintiff'.¹⁶¹ The court found that 'the sensational facts of the crime, the investigation and the trial of Christopher Porco are indisputably events of public interest, and the film therefore qualifies as newsworthy',¹⁶² reaffirming the *Messenger* position.

C. California Persona Protection

California has both a statutory and common law right of publicity. As of 1972, section 3344(a) of the California Civil Code protects name, voice, signature, photograph and likeness¹⁶³ against use 'in any manner, on or in products, merchandise,

¹⁵⁶ *Porco v Lifetime Entertainment Services* (2017) 147 AD 3d 1253.

¹⁵⁷ *Messenger v Gruner and Jahr Printing and Publishing* 93 NY 2d 948 (1999).

¹⁵⁸ *Porco v Lifetime Entertainment Services LLC* (2020) Appellate Division – Third Department Case No 531681 Brief of American Booksellers Association et al as Amici Curiae.

¹⁵⁹ *Porco v Lifetime Entertainment Services* 150 NYS 3d 380 (2021).

¹⁶⁰ *ibid*.

¹⁶¹ *ibid* [383].

¹⁶² *ibid* [385].

¹⁶³ Greenberg, M and Lovitz, M, 'Right of Publicity and the intersection of copyright and trade mark law' (2012) *GGU Law Digital Commons*, Paper 484, 4.

or goods, or for the purposes of advertising or selling, or soliciting purchases of, products, merchandise, goods or services.’ Section 3344(e) clarifies that use in a commercial medium will not require consent ‘solely because the material containing such use is commercially sponsored or contains paid advertising.’ It is a question of fact as to whether the attribute ‘was so directly connected with the commercial sponsorship or with the paid advertising as to constitute a use for which consent is required under subdivision (a)’. The limitations of the right are made clear in section 3344(d), which states that the protected attributes can be used without consent ‘in connection with any news, public affairs, or sports broadcast or account, or any political campaign’.

Section 3344.1 provides a post-mortem right of publicity with a term of 70 years after the death of the person. This right is similar to the right of publicity for living persons, but there are two main differences. First, in order to claim damages for infringement, the successor in interest or the licensee must register her claim to the right of publicity of the deceased pursuant to section 3344.1(f). The deceased’s publicity rights ‘are property rights, freely transferable or descendible, in whole or in part, by contract or by means of any trust or any other testamentary instrument’ according to section 3344.1.(b). Second, the attributes of the individual (name, voice, signature, photograph and likeness) must have had commercial value at the time of the person’s death, or have become valuable because of her death. It is not required that the person used her attributes commercially during her lifetime.

i. Name

There has been little case law on name, so it is unclear whether fictional names and nicknames are protected under the California statute. However, the case of *Abdul-Jabbar* confirmed that ‘name’ under the statute ‘is not limited to present or current use.’¹⁶⁴ In that case, basketball player Kareem Abdul-Jabbar, formerly known as Lew Alcindor, brought a claim against GMC for using his birth name in an advertisement; GMC claimed that Alcindor could not rely on the right of publicity because he had abandoned his name. The district court accepted this argument, but the court of appeal rejected it, stating that ‘To the extent GMC’s use of the plaintiff’s birth name attracted television viewers’ attention, GMC gained a commercial advantage.’¹⁶⁵

ii. Voice

The statutory right applies only to actual voice and does not include sound-alikes.¹⁶⁶

¹⁶⁴ *Abdul-Jabbar v GMC* 85 F 3d 407 (9th Cir 1996) (formerly Lew Alcindor).

¹⁶⁵ *ibid*.

¹⁶⁶ *Midler v Ford Motor Co* 849 F 2d 460 (9th Cir 1988) [463]: ‘California Civil Code section 3344 is also of no aid to Midler. The statute affords damages to a person injured by another who uses the person’s “name, voice, signature, photograph or likeness, in any manner.” The defendants did not

iii. Photograph

A plaintiff claiming infringement of the right of publicity by use of a photograph must be 'readily identifiable' in the photograph. Photograph includes 'any photograph or photographic reproduction, still or moving, or any videotape or live television transmission, of any person, such that the person is readily identifiable'.¹⁶⁷ A person is 'readily identifiable' if 'one who views the photograph with the naked eye can reasonably determine that the person depicted in the photograph is the same person who is complaining of its unauthorized use'.¹⁶⁸

iv. Likeness

Likeness is difficult to define and must be approached on a case-by-case basis. In *Newcombe v Adolf Coors Co*, Coors Brewing Company published an advertisement that featured a drawing of a pitcher on a baseball field and a glass of beer.¹⁶⁹ Newcombe claimed the drawing was based on his likeness as evidenced by the distinctive stance. Newcombe, a recovering alcoholic, strongly objected to his alleged depiction in the advertisement. The appeal court, considering the summary judgment entered against Newcombe by the trial court, borrowed the definition of 'readily identifiable' used for photographs from the statute: 'in order to constitute Newcombe's likeness, the pitcher depicted in the advertisement must be readily identifiable as Newcombe'.¹⁷⁰ The court held that the use of Newcombe's likeness was a triable issue of fact and thus reversed the summary judgment on this issue.

Another case that considered the meaning of 'likeness' involved a robotic depiction. The court held that a robot could fall within the definition of likeness if sufficiently detailed.¹⁷¹ In the case of *Wendt v Host International*, the defendants secured a licence from the producers of the television series *Cheers* to create themed airport lounges based on the series. The defendants created robots based on the likenesses of actors from the series and placed them in the lounges.¹⁷² Generally, the level of detail required to be considered 'likeness' is not clear, as the court in *White v Samsung* rejected White's statutory publicity right claim against Samsung for using a robot dressed in her customary red dress and with blonde

use Midler's name or anything else whose use is prohibited by the statute. The voice they used was Hedwig's, not hers. The term "likeness" refers to a visual image not a vocal imitation. The statute, however, does not preclude Midler from pursuing any cause of action she may have at common law; the statute itself implies that such common law causes of action do exist because it says its remedies are merely "cumulative."

¹⁶⁷ California Civil Code, s 3344(a)(b).

¹⁶⁸ California Civil Code, s 3344(a)(b)(1).

¹⁶⁹ *Newcombe v Adolf Coors Co* 157 F 3d 686 (9th Cir 1998) [692]–[693].

¹⁷⁰ *ibid.*

¹⁷¹ *Wendt v Host Intern Inc* 125 F 3d 806 (9th Cir 1997) [810].

¹⁷² *ibid.*

hair, for falling outside the scope of the right.¹⁷³ However, the court in *Wendt*, in referring to their decision in *White*, noted that ‘we specifically held open the possibility that a manikin moulded to Vanna White’s precise features, or one that was a caricature or bore an impressionistic resemblance to White might become a likeness for statutory purposes.’¹⁷⁴ The judgments in these cases indicate that likeness is to be assessed according to the degree of resemblance on a case-by-case basis.

In a series of cases concerning use of likeness in video games (*Re NCAA Student-Athlete Name & Licensing Litigation*¹⁷⁵ and *Davis v Electronic Arts*¹⁷⁶), the likenesses and names of college athletes were virtually depicted. It was clear that the characters in the video games were based on the athletes. Since video games are First Amendment works, the California court applied the ‘transformative use test’, which considers whether the work in question has ‘transformed’ the persona to an extent that the use should be ‘immunized from liability for right of publicity infringement.’¹⁷⁷ This test, developed in 2001, is used in California to determine whether an expressive work infringes the right of publicity.¹⁷⁸ The video games failed the ‘transformative use’ test¹⁷⁹ because they recreated the plaintiffs in so far as possible. A similar outcome was arrived at in *No Doubt v Activision*, as the court opined that the depictions of the members of the band were ‘pure mimicry’ (the case was settled after a second appeal).¹⁸⁰ In contrast, in *Kirby v Sega of America Inc*, a celebrity was unsuccessful in her claim for infringement of her right of publicity because the character in the game was considered transformative as it was not a literal depiction of the plaintiff: there were physical differences, the hair-style and outfits were different, the character in the game was a space-age reporter rather than a singer and the character’s dance moves were dissimilar to those of the plaintiff.¹⁸¹

In contrast to the statutory right that protects named elements of persona, the common law right of publicity protects ‘identity’, which has been interpreted more broadly than the statutory right. However, the California common law right is limited to living persons, unlike the statutory right, which exists post-mortem.¹⁸²

¹⁷³ *White v Samsung* (1992).

¹⁷⁴ *Wendt v Host* (1997) [810].

¹⁷⁵ *Re NCAA Student-Athlete Name & Licensing Litigation* 724 F 3d 1268 (9th Cir 2013) (*Keller*).

¹⁷⁶ *Davis v Electronic Arts* 775 F 3d 1172 (9th Cir 2015).

¹⁷⁷ *McCarthy* (2022) § 8:73.

¹⁷⁸ *Comedy III Productions v Saderup* 25 Cal 4th 387 (2001).

¹⁷⁹ There are five factors used by the court to determine whether a use is transformative: (i) Literal depictions are unlikely to be transformative. Conventional artistic choices are not enough. (ii) If the celebrity image is ‘the very sum and substance’ of the work rather than the ‘raw materials from which an original work is synthesized’, it is unlikely to be transformative. (iii) Work which is ‘primarily the defendant’s own expression rather than the celebrity’s likeness’ is likely to be transformative. (iv) It needs to be considered whether the elements that dominate the work are literal and imitative or creative based on quantitative assessment. (v) If the marketability of the work is primarily a result of the celebrity depicted, it is unlikely to satisfy the test.

¹⁸⁰ *No Doubt v Activision Publishing Inc* 192 Cal App 4th 1018 (2011) [1033].

¹⁸¹ *Kirby v Sega of America Inc* 144 Cal App 4th 47 (2006).

¹⁸² *Lugosi v Universal Pictures* 603 P 2d 425 (Cal 1979) [428]; *Bruce Lee Enterprises LLC v AVELA Inc* 2011 WL 1327137 (SDNY 2011).

The common law right was first recognised in 1974 in the case of *Motschenbacher v RJ Reynolds Tobacco Co*,¹⁸³ two years after the introduction of the statutory right of publicity. The court stated that ‘the California appellate courts would, in a case such as this one, afford legal protection to an individual’s proprietary interest in his own identity’.¹⁸⁴ However, the court did not label this protection, as it stated it was unsure whether the protection should be termed ‘privacy’, ‘property’ or ‘publicity’.¹⁸⁵ Identity was given a broad interpretation in this case, as the plaintiff’s features were not visible. Rather, the aspect of his identity that was appropriated was his distinctive race car.

The California Court of Appeals subsequently outlined the elements necessary for proving infringement of the common law right of publicity in the case of *Eastwood v Superior Court*:

1. The defendant’s use of the plaintiff’s identity;
2. The appropriation of the plaintiff’s name or likeness to defendant’s advantage commercially or otherwise;
3. Lack of consent;
4. Resulting injury.¹⁸⁶

The broader scope of the common law right of publicity compared to the statutory right of publicity is best illustrated by the case of *White v Samsung*.¹⁸⁷ The Court of Appeal stated:

The district court dismissed White’s claim ... reasoning that defendants had not appropriated White’s ‘name or likeness’ with their robot ad. We agree that the robot ad did not make use of White’s name or likeness. However, the common law right of publicity is not so confined.¹⁸⁸

In finding infringement, the Court of Appeal noted other decisions in which one of the attributes protected by the statute was not appropriated but the identity of the plaintiff was used to make a commercial gain. These included the use of a race car,¹⁸⁹ a sound-alike¹⁹⁰ and a catchphrase:¹⁹¹

It is not important how the defendant has appropriated the plaintiff’s identity, but whether the defendant has done so. *Motschenbacher*, *Midler*, and *Carson* teach the impossibility of treating the right of publicity as guarding only against a laundry list of specific means of appropriating identity.¹⁹²

¹⁸³ *Motschenbacher v RJ Reynolds Tobacco Co* 498 F 2d 821 (9th Cir 1974).

¹⁸⁴ *ibid* [825].

¹⁸⁵ *ibid* [827].

¹⁸⁶ *Eastwood v Superior Court for Los Angeles County* 149 Cal App 3d 409 (Ct App 1983) [417].

¹⁸⁷ *White v Samsung* (1992).

¹⁸⁸ *ibid* [1379].

¹⁸⁹ *Motschenbacher* (1974).

¹⁹⁰ *Midler* (1988).

¹⁹¹ *Carson v Here’s Johnny Portable Toilets Inc* 698 F 2d 831 (6th Cir 1983).

¹⁹² *White v Samsung* (1992) [1398].

The court went on to explain the policy aims of the common law right:

Indeed, if we treated the means of appropriation as dispositive in our analysis of the right of publicity, we would not only weaken the right but effectively eviscerate it. The right would fail to protect those plaintiffs most in need of its protection. Advertisers use celebrities to promote their products. The more popular the celebrity, the greater the number of people who recognize her, and the greater the visibility for the product. The identities of the most popular celebrities are not only the most attractive for advertisers, but also the easiest to evoke without resorting to obvious means such as name, likeness, or voice.¹⁹³

v. *Life Story*

Neither the common law nor the statutory right of publicity in California protects the right to ‘life story’. However, recent cases have questioned how courts should approach these cases. In the case of *Sarver v Chartier*, a war veteran sued the producers of *Hurt Locker*, as he claimed the film was based on his life experiences. The case was dismissed under California’s Strategic Lawsuit Against Public Participation statute (SLAPP) as, ‘The Hurt Locker is not speech proposing a commercial transaction.’¹⁹⁴ In contrast, the superior court in *De Havilland* denied a motion to strike under SLAPP as the work, a docudrama entitled *Feud*, was not transformative, because ‘the Defendants admit that they wanted to make the appearance of Plaintiff as real as possible.’¹⁹⁵

Like *Porco* in New York (see section II.B.iv), the *De Havilland* case and the failure of the producer’s motion to strike caused much tension in the production sector. The International Documentary Association filed an amicus brief in support of the defendants, FX Networks and Pacific 21 Entertainment Group. The brief argued that the failure to find the documentary transformative would impair documentary film making, and cited *Dora v Frontline Video*¹⁹⁶ in support of the proposition that finding infringement would be contrary to the First Amendment. The application of the right of publicity to television and movies was first considered in *Guglielmi*,¹⁹⁷ but this case failed because the claim was brought on behalf of a deceased individual, and post-mortem protection was not available at that point. However, when post-mortem protection was recognised via the California Celebrities Rights Act, an exception was included for audiovisual works, whether fiction or non-fiction.¹⁹⁸ Several cases subsequently confirmed that being portrayed in a film does not infringe the right of publicity.¹⁹⁹

¹⁹³ *ibid* [1399].

¹⁹⁴ *Sarver v Chartier* 813 F 3d 891 (9th Cir 2016) [905].

¹⁹⁵ *De Havilland v FX Networks LLC* Case No BC667011 (2017) Ruling on Defendant’s Motion to Strike (Anti-SLAPP).

¹⁹⁶ *Dora v Frontline Video Inc* 15 Cal App 4th 536 (1993).

¹⁹⁷ *Guglielmi v Spelling-Goldberg Productions* 25 Cal 3d 860 (1979).

¹⁹⁸ California Civil Code, s 3344.1(a)(2).

¹⁹⁹ See *Taylor v Nat’l Broadcasting Co* 22 Media L Rep 2433 (Cal Super Ct 1994); *Hicks v Casablanca Records* 464 F Supp 426 (SDNY 1978); *Tyne v Time Warner Entertainment Co* 901 So 2d 802 (Fla 2005);

The Court of Appeal in California restored the status quo and noted that failure of a production to satisfy the transformative use test ‘would render actionable all books, films, plays, and television programs that accurately portray real people. Indeed, the more realistic the portrayal, the more actionable the expressive work would be.’²⁰⁰ The Court therefore found the film to be entitled to First Amendment protection.²⁰¹

III. Legal Regulation in Theory versus Practice

The common law right of publicity coupled with the statutory right of publicity equate to expansive persona protection in California. While the New York privacy right is more limited, and the contours of the post-mortem right of publicity have not yet been tested, the federal Lanham Act accounts for the difference and results in both States having expansive persona protection. The extent of protection available to potential claimants is comparatively greater than that in the UK. Yet, for the most part, this divergence in protection has not resulted in different behaviours in commercialisation practices. When the divergence becomes impactful is in the approach to dispute resolution: US claimants have more possible causes of action on which to base a claim. The strict liability approach to the right of publicity provides an easily accessible avenue to redress when persona is used without authorisation. Furthermore, the threshold for confusion under false endorsement is lower than misrepresentation under passing off. This lower threshold verges on protection against misappropriation, thus further bolstering the legal avenues for persona protection in the US.

This book proceeds by examining empirical data collected across four industries that have often utilised persona: advertising; merchandising; film and television; and sports video games. To conclude this chapter, the way in which the law should work based on the analysis presented is considered against the findings of the way in which the industries operate in reality.

A. Advertising Industry

In terms of the advertising industry, in the UK, permission only needs to be sought in accordance with the law of passing off where it is clear that the brand is trying to convey that the person is endorsing the product or service. As for the Advertising Codes, permission should be sought if a living person is being used,

Sarver v Chartier 813 F 3d 891 (9th Cir 2016); Wander, P, ‘First Amendment supports uncensored fictionalised stories about celebrities: *De Havilland v FX Networks LLC*’ (2018) 29(8) *Ent L Rev* 257.

²⁰⁰ *De Havilland v FX Networks LLC* 21 Cal App 5th 845 (2018) [850].

²⁰¹ *ibid* [870]–[871].

but permission is not required for non-broadcast advertisements; ASA rulings are inconsistent on this point. Interestingly, chapter 3 will reveal that permission is sought more often than is strictly required by passing off, due to the perception of litigation risk as well as the blurring between endorsement and illustrative advertisements,²⁰² while little heed is paid to the Advertising Codes as advertisers are unconcerned about potential ASA consequences. Exclusive endorsement deals are respected despite the fact that it is only trade marks that confer a proprietary right that can be licensed and enforced against third parties.

As for the US, permission needs to be sought if using persona in any advertisement. Exclusive endorsement deals are respected because it is not considered worthwhile to undermine these deals, rather than because it would be an infringement to do so. While the law can be used to protect the proprietary rights embodied in such deals, the law was not cited as an influence by the lawyers interviewed.

B. Merchandising Industry

In the UK, passing off is applicable to and influential on modern merchandising, which involves collaborating with individuals to create a branded product.²⁰³ It has limited application in the traditional merchandising industry, which merely requires use of a photograph or signature, yet high-street merchandisers seek permission even when they are not required to do so. Alternative merchandisers, usually smaller entities, who may not have access to legal advice and sell in market stalls or on online marketplaces, do not seek permission and are not concerned about the circumstances in which passing off might apply.

In the US, permission must be sought for using persona on merchandising, but only high-street merchandisers do this. Alternative merchandisers are not influenced by the law, despite its applicability.

C. Film and Television Production and Video-Game Development Industries

For both video games and films, different approaches taken in New York as compared to California can cause confusion as to when permission should be sought to use persona. In New York, a video game was considered as falling outside the remit of the statute; whereas in California, video games have been found to infringe where the use of persona is not transformative. For films, *Porco* in New York indicated that too much fictionalisation would preclude a successful

²⁰² Different types of advertisements will be discussed in ch 5.

²⁰³ Mooro, A, 'Why 2016 was the year we became obsessed with celeb merch' *Refinery29* (13 December 2016) at www.refinery29.uk/rise-of-celebrity-merchandise-2016 (accessed 12 September 2018). The distinction between traditional and modern merchandising is discussed in ch 6.

‘newsworthiness’ defence; while in California, the film *Hurt Locker* was protected by anti-SLAPP in *Sarver v Chartier* in 2016, whereas this motion was initially rejected in *De Havilland*. These recent developments and inconsistencies in the law have fed in to the behaviour of obtaining ‘life story rights’. Permission is not required in any jurisdiction to use persona in films, yet a behaviour of seeking permission for persona where it is likely to be given has arisen in the US. This behaviour has also permeated the UK because of the global nature of this industry. Conversely, there is a behaviour of not seeking permission where it is unlikely to be given, because it would be futile to do so.

The video game industry is also global in nature. Until recently, there was no obvious legal requirement to seek permission to use persona in video games, yet there is a behaviour of this kind in operation. Recent developments in US case law indicate that permission can be legally required under the right of publicity in California as a result of the *NCAA Litigation*, but there have been no similar developments in New York as *Lohan* was unsuccessful. However, due to the distribution of video games, the California approach must be heeded.

D. Industry Summary

In summary, none of the behaviours that will be observed in the upcoming chapters align precisely with the law in the UK, as they often go beyond what is legally required in terms of seeking permission to use persona, or pay little heed to the Advertising Codes. While the permission requirements are so stringent in the US that behaviours often do reflect the law, they also go beyond what is legally required in certain industries – in particular, the film industry and, until recent changes indicated that permission would be necessary, the video game industry.